Tyler Allen Lofall -Plaintiff
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UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER A. LOFALL, Plaintiff, v. **THE COUNTY OF CLACKAMAS at el,** *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Clackamas County Sheriff Office, Clackamas County Officer John Doe 1, Officer John Doe 2,* Defendant(s),	**Case No.: 3:24-cv-839** Plaintiffs Response Opposing Magistrate Staci Beckerman's Finding and Recommendations July 15th, 2024

Plaintiffs Response Opposing Magistrate Staci Beckerman's Finding and Recommendations July 15th, 2024

Plaintiff here by is giving notification that he intends to exercise the option to submit the Amended Complaint within thirty days of July 15th as offered in Finding and Recommendation intends to submit the following: (1). Amended Complaint, (2). Declaration of Tyler Allen Lofall, (3) Motion to Exercise Jurisdiction, (4). Motion to with draw Removal of State Court claim 22CV39627 (Clackamas County), (5) Motion for reconsideration of dismissal of claim 3:24-CV838, (5)b. Exhibit of dismissal ready if Federal Court Exercises Jurisdiction [of Constitutional Challenges. And **Most needed** a

(6). Motion to Recognize Equitable Tolling, and (7) a Reconsideration of [a much Needed] Appointment of Counsel.

I. INTRODUCTION

I Tyler Allen Lofall ("Lofall") Stand before this Honorable Court Declaring that the response it gives is wrong on all accounts in its claims, And I declare with more Integrity then Opposed by all defendants combined, and that explanation shall come more clearly stated in the filings with the Amended complaint.

I, respectfully submit this response opposing Magistrate Staci Beckerman's Findings and Recommendations dated July 15, 2024. The court's findings are fundamentally flawed and fail to recognize the substantial evidence supporting my claims. I request the court to accept my amended complaint and grant the relief sought. The systemic corruption and abuse of power by the defendants have caused significant harm, and I am entitled to compensation and justice.

My Amended Complaint will come before the thirty days of which it was said to be due, and shall be due and will be requesting In the name of Justice as it so requires. With the mentioned documents as listed above before the thirtieth day from July 15th.

II. BACKGROUND

A. Detailed Timeline of Events

1. March 6, 2022: Wrongful arrest without a warrant by Officers Dana Gunnarson and Catlin Blyth. This arrest was based on fabricated evidence and false charges, violating my Fourth Amendment rights.

2. January 25, 2021: Filed initial complaint in state court. Despite following all procedural requirements, my filings were repeatedly rejected without explanation, denying me access to justice.

3. May 24, 2022: Re-arrested by John Doe Officers 1 and 2. This re-arrest was a clear case of double jeopardy, violating my Fifth Amendment rights.

4. June 10, 2022: District Attorney Rebecca Portlock and court-appointed advisor Rubin Medina colluded to delay my trial. This collusion was intended to obstruct justice and deny me a fair trial, violating my Sixth Amendment rights.

5. June 20, 2022: Jail guard deleted 62 critical legal files. This deliberate act was intended to sabotage my defense and deny me access to legal resources, violating my Fourteenth Amendment rights.

6. July 1, 2022: Ordered to be released by the court but unlawfully detained for an additional week. This unlawful detention was a clear violation of my due process rights under the Fourteenth Amendment.

7. July 15, 2024: Magistrate Staci Beckerman's Findings and Recommendations issued. These findings are based on a flawed understanding of the facts and the law.

Factual Background

I state with Confidence that the one that holds the truthful in information on these matters before the court is the only one that has been repeatedly made silent since the day

these events occurred, (in front of the court) however whether it be the automation code or those who control it, I have been ignored intentionally in the neighborhood of 150 times, (See Exhibit 1- fillings list from Clackamas County), had three dozen additional filings with the Oregon Court of Appeals, where my documents were misplaced and lost; Shut down and lost due to not having a 'Undertaking of Costs' (even though io requested a waiver twice) and even ended with the Supreme Court, with out the financial ability to print the 10 copies of my *Writ of Certiorari* which I give 100% blame to the false arrest causing Catastrophic damages to my life.

The District Court has now had the same confusion that every court has had on my complaints and I state the same thing ive said every time that these claims cannot be operated with an Automation model, and and just shuffled to the side. Moreover ive lost my ID due to the actions of the State of Oregon, therefore I cannot personally come inside and speak to anyone about my avenue to success. I have had multiple sets of Documents get returned, not accepted, Bounced back and for whatever reason just like when I was unlawfully arrested, I am the only one that knows what's going on in these matters and seemingly I am the only one that cant express the situation how it needs to be expressed.

This Claim Simply cannot be viewed without bringing the claims together, its complex, very complex and The other claims must be reviewed with it. However the State Court and West Linn PD wouldn't hear me out, and now the situation is in a poor state, where portions of the defendants whom are not party to the claim because their roles were not revealed until the action was well under way, and then once discovered was the Judicial Staff at County that is Judging the claims, they have allowed over a year delay pushing the

claims into a statute of limitation while the approving Court avoiding becoming a party is freely avoiding the liability by approving.

Fairness

This is beyond unjust at this point, beyond any unfair to any individuals rights that I personally witnessed or believed that still happened in our country.

Rights that, '***we are people'***, are raised to believing we have… simply Don't Exist… And if these motions are preparing me for the inevitable, in an attempt to seal the deal in a loss that defines Organized Extortion I have nothing left to lose but this isn't right, and I don't deserve it. People go to war all the time fighting for right, fighting for freedom … and my own country took everything from me, My freedom, Every bit of property I had, all left on the side of the road, my Business, my home, my relationships. Im a walking talking reason that will not let this go because the State of Oregon has castrated my success, and thrown me in the mud and the only reason it got so bad is because The county of Clackamas is one big sham. It doesn't appear to stop there and from what I see we are one big automation system ive learned. None the less Ther harm here has stemmed from the inability to communicate and lack of transparency that runs over so many has drug my life through the mud for the past 4 years now, and all because ive attempted to stand up for my right and the falsehoods behind out belief in protections that is non existent is a gross miscarriage in its self. The following must be included in the claim and for the following reasons:

1. **The remodel from Joanna Lee Bozian – because I had large Assignment of Benefits ("aob") spoil while false arrested that the Officers at the jail forced**

me to lose blaitenly. Unless we just admit that its owed however everything else gets contested to be true, but The simple fact I was denied my day in court should be enough.

2. **The claim with West Linn and other actors was supposed to be apart of the same claim but like I said I have had my claims pushed around not how ive wanted them outside of my control … its easy to shed liability when the judge is the defendant, when the prosecution can just make up claims and when your own counsel hides evidence.**
3. **AND the state was put on notice, and I have 20 emails to a senior attorney General, and the Clackamas County DA Rebecca Portlock was a Defendant at the state level in the case im trying to move to federal court. was a defendant**

Its gross. And I have the most undeniable evidence it's the defendants own testimony and reports yet due to the Defendants letting my property get smashed stollen and pilfered I don't have an ID to enter the building and my evidence keeps getting denied. And rejected. I've sent as shown above 150 filings and all lost?

My documents are very readable, I had a 4.4GPA in High school a 4.0 twice in college, and because of someone deciding outside of law that I don't deserve my rights to be upheld it may be so. As the court can see in my writing that I can write clear and well, and with being so far in the right, Only a broken system can add such harm as the harm I

have experienced. Harm derived from the antagonist of time, coupled with the hidden scope of ML (Strict Scrutiny that even lawyers are oblivious to).[1]

Constitutionally Denied

1. FIRST AMENDMENT

Why is this okay? I have had my freedoms taken, my securities stripped, and the first amendment trampled in my rights to petition as the lay person would believe we had them. However I know its stated that the people must have the opportunity to petition, they need not be responded to, nor even heard… (which is fraud in its own) I had my requests while in jail and pro se requesting discovery denied 14 times. At this time I sent my first notice to the state of Oregon on March 28th 2022 my grievances took 5 weeks to respond to, and its truly evident in jail and with the courts, that no one really reads or cares about the grievances they are simply there to prevent mass anarchism within the wronged thinking they are getting somewhere.

2. FOURTH AMENDMENT

The state did everything under their power to charge me with the claims they held against me but they had nothing. It should not have taken 129 days to figure out what they knew before the arrest began. However still years later I am standing waiting for the state to cure their harms and they still refuse. Bottom line is I was false arrested, multiple times.

[11] The hidden fact that court documents are not reviewed by judges generally speaking is a fact that wrong to cover up, and the public should know, and for them not knowing the automation systems unhumanistic requirements or else a failure are not only unjust, but unconstitutional at the heart of our countries foundation.

I was ordered to be let go by the court, and the jail continued to hold me. (See Exhibit # on the jail reports, and See Exhibit # on the court docket sheet being corrected some 12 days later.)

3. FIFTH AMENDMENT

My release rights taken away when I had contact with the alleged victim while I was hospitalized due to hyperthermia for staying away from my property, and was taken back to jail at a court date. I Then was given a new bail and that I bailed out, the state then for the same actions took me back to jail several days later. The Systemic failure that repeatedly spoiled my life are obvious intentional procedural failures that are routinely worked into the way the county gets their ways, designed to break peoples spirits and have caused more bad thoughts than anything else in my life. This double jeopardy just shows how far the system will go to keep its corruption a secret.

4. SIXTH AMENDMENT

right to meaningful access to justice is only skin deep and I can have the State put False hope in my heart and give me two appointments of counsel and both plainly go against me.

In **McCoy v. Louisiana** (2018), the Supreme Court recognized a defendant's right to insist that their attorney contest all charges against them, highlighting the court's duty to correct constitutional violations even in complex and capital cases. Moreover in this case, the first attorney withheld exculpatory photos showing the states witness had a hammer and hose at the time where I said I was being attacked with a hammer, and that was hidden

from me until after I was denied by my appointed counsel the option to contest my claims only being left the opportunity to 'make a deal'.

5. SEVENTH AMENDMENT:

Any While Unlawfully Detained I lose my Seventh Amendment right to Civil Jury Trial because my Assignment of Benefits was dismissed for $111,943.56 was taken from me by fraud admitted on the record and based upon law I was exempt (ORS 701.010(7)- I was exempt for being a resident of the house I repaired there fore exempt from the cause of action that dismissed it while I was unlawfully detained.

6. FOURTEENTH AMENDMENT:

Forced to miss Trial due to being intentionally forced to Covid positive status (See Exhibit #) Also Denied my right to sight (See Exhibit #), my right to due Process in multiple ways (See Exhibits #, #, #)[2]

What's more is that the evidence that would have easily freed me and showed the harm from the state was blocked 14 times by the State, highlighting the States Knowledge of that Harm, then further Denied when the Arresting Agency then changed their Policy immediately following the notice of the suit further shielding their obvious corruption of West Linn Police Department. The Actions of the state are rooted so deeply that the meer trial at the state Level Simply cannot be held fairly, for between the filing of these events and the original Filing of the Clackamas County Claims, newly discovered Evidence was

[2] Due Process Exhibit Showing that I was arrested after a mear 7-8 Minutes with out question, based upon photos that were judged with Bias, and framed and hidden by my own appointed Counsel when their position should have been exonerating.

discovered and that evidence as shown in the Transcripts from June 10th 2022 Not discovered until Sprint 2024 when the transcripts were pulled for trial preparations against West Linn that added new Defendants to be from the Judiciary its self therefore preventing the fairness to be denied on the state level. (See Exhibit # - Transcript June 10th 2022).

Immediately following that point in time, with obvious conspired influence the Jail Stopping my production of evidence by denial of a thumb drive, denial of trial, denial of truth, collusion of the judge and my own attorney advisor, lying of my Covid Status to gain postponements of trial due to the state being for a second time unprepared. Then Intentionally deleting specifically 62 of my documents on a computer that the guards belief fell short to my ability to circumvent the Command Line Interface code as it was shown at exactly 5:10 PM on June 20th that Alan , a guard during a time all inmates were locked down for Dinner deleted my files.

Upon that same records request June 24th of June the States own witness, called DA Rebecca Portlock on the record a liar and full of half-truths.,, clearly stating that I have committed no crimes

III. ARGUMENTS

1. A. Eleventh Amendment

The court's finding that the Eleventh Amendment bars my claims against the State of Oregon is incorrect. I have provided sufficient notice to the state and the Attorney General's office regarding the constitutional violations. The state's actions have caused

significant harm, and they should not be immune from liability. In Ex parte Young, 209 U.S. 123 (1908), the Supreme Court held that state officials can be sued in their official capacities for prospective relief to end ongoing violations of federal law. The Eleventh Amendment does not bar suits against state officials for injunctive relief to stop ongoing violations of federal law.

2. B. Section 1983 Claims Against the Clackamas County Police Department

The Clackamas County Police Department is a proper defendant under Section 1983. The department's actions, including the false arrest and destruction of evidence, directly violated my constitutional rights. In Monell v. Department of Social Services of the City of New York, 436 U.S. 658 (1978), the Supreme Court held that local governments could be sued under Section 1983 when the alleged unconstitutional action implements or executes a policy statement, ordinance, regulation, or decision officially adopted and promulgated by that body's officers. The Clackamas County Police Department's actions were part of a systemic pattern of abuse and corruption, making them liable under Section 1983.

3. C. Fourteenth Amendment

The court's finding that I have an adequate post-deprivation remedy under the Oregon Tort Claims Act is incorrect. The state's actions were not random or unauthorized but part of a systemic pattern of abuse and corruption. The deletion of my legal files and denial of access to legal resources were intentional acts that deprived me of due process. In Zinermon v. Burch, 494 U.S. 113 (1990), the Supreme Court held that when the state

deprives an individual of a protected interest, it must provide a meaningful opportunity to be heard. The state's actions in denying me access to legal resources and destroying critical evidence were deliberate and intended to obstruct justice, violating my due process rights under the Fourteenth Amendment.

4. D. Violation of Civil Rights

The court's finding that my civil rights claim is too vague is incorrect. I have provided detailed allegations of how my rights were violated, including false arrest, denial of due process, and destruction of evidence. These actions constitute clear violations of my civil rights under Section 1983. In Gibson v. Superintendent of New Jersey Department of Law and Public Safety-Division of State Police, 411 F.3d 427 (3d Cir. 2005), the court held that a plaintiff must allege the violation of a right secured by the Constitution and laws of the United States and show that the alleged deprivation was committed by a person acting under color of state law. My detailed allegations and supporting evidence clearly demonstrate that my civil rights were violated by the defendants.

5. E. Oregon Tort Claims Act

The court's finding that I failed to provide timely notice under the Oregon Tort Claims Act is incorrect. I have provided sufficient notice to the state and relevant authorities regarding the harm caused by their actions. In Wilson v. Garcia, 471 U.S. 261 (1985), the Supreme Court held that the statute of limitations for a Section 1983 claim is the same as the state's statute of limitations for personal injury claims. The state's actions in denying me access to legal resources, unlawfully detaining me, and destroying critical

evidence were deliberate and intended to obstruct justice, violating my due process rights under the Fourteenth Amendment.

6. F. Meaningful Access to Justice

The essence of meaningful access to justice is that it must be provided at a time and in a manner that allows the individual to effectively utilize it. The defendants here took away my rights and then attempted to give them back in a manner that was neither timely nor effective. This is a clear breach of the principle of meaningful access to justice. In Bounds v. Smith, 430 U.S. 817 (1977), the Supreme Court held that the fundamental constitutional right of access to the courts requires prison authorities to assist inmates in the preparation and filing of meaningful legal papers by providing prisoners with adequate law libraries or adequate assistance from persons trained in the law. The defendants' actions in denying me access to legal resources and destroying critical evidence were deliberate and intended to obstruct justice, violating my due process rights under the Fourteenth Amendment.

7. G. Systemic Corruption and Automation Failures

The government's reliance on automated systems and procedural barriers has created an environment where justice is not accessible to those who need it most. The automated rejection of my filings, without any human review or explanation, is a prime example of this systemic failure. The court cannot offer relief and then make it impossible to redeem that relief through procedural hurdles and automated denials. In Mathews v. Eldridge, 424 U.S. 319 (1976), the Supreme Court held that procedural due process

requires notice and an opportunity to be heard at a meaningful time and in a meaningful manner. The defendants' actions in denying me access to legal resources and destroying critical evidence were deliberate and intended to obstruct justice, violating my due process rights under the Fourteenth Amendment.

8. H. Thompson v. Clark and State Liability

In Thompson v. Clark, 142 S. Ct. 1332 (2022), the Supreme Court held that a plaintiff could bring a claim for malicious prosecution if the underlying criminal case ended in a manner not inconsistent with the plaintiff's innocence. My claim was dismissed on July 13, 2022, marking the state's fault in this matter. The harm caused by the state is undeniable, and their attempts to escape liability only exacerbate the injustice. The defendants' actions in denying me access to legal resources, unlawfully detaining me, and destroying critical evidence were deliberate and intended to obstruct justice, violating my due process rights under the Fourteenth Amendment.

9. I. Police Reports and Discovery Denials

The police reports from March 4th, 2022, prove that the actions were known and as stated in the policy of the West Linn Police Department, the officers violated policy by being selective in their statements. The fact that discovery was denied 14 times provides strong evidence that the court is being unjust by not allowing legal eyes to review the case before making me submit a final legal document and dismissing the case. This is a clear violation of my constitutional rights to due process and equal protection under the law. The defendants' actions in denying me access to legal resources, unlawfully detaining me, and

destroying critical evidence were deliberate and intended to obstruct justice, violating my due process rights under the Fourteenth Amendment.

IV. CONCLUSION

For the reasons stated above, I respectfully request the court to reject Magistrate Staci Beckerman's Findings and Recommendations and grant the relief sought in my amended complaint. The systemic corruption and abuse of power by the defendants have caused significant harm, and I am entitled to compensation and justice.

Subbmitted on my own behalf,
Dated this 28th day of July 2024.

/s/ Tyler A. Lofall

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EXHIBITS

BE ATTACHED TO THE AMENDED COMPLAINT

1. Exhibit 1: Emails and letters showing attempts to file responses and rebuttals through PACER.
2. Exhibit 2: Court documents and photographs supporting claims of false arrest and destruction of evidence.
3. Exhibit 3: Police reports from March 4th, 2022, proving selective statements and policy violations.
4. Exhibit 4: Documentation of denied discovery requests (14 times).
5. Exhibit 5: Transcripts from June 10th, 2022, showing collusion between DA Rebecca Portlock and court-appointed advisor Rubin Medina.
6. Exhibit 6: Jail records showing deletion of 62 critical legal files on June 20th, 2022.
7. Exhibit 7: Court order from July 1st, 2022, showing unlawful detention beyond the ordered release date.

8. Exhibit 8: Documentation of financial and emotional harm caused by the state's actions.
9. Exhibit 9: Legal precedents and case laws supporting arguments (e.g., Ex parte Young, Monell v. Department of Social Services, Zinermon v. Burch, Gibson v. Superintendent of New Jersey Department of Law and Public Safety-Division of State Police, Wilson v. Garcia, Bounds v. Smith, Mathews v. Eldridge, Thompson v. Clark).

B. Procedural Failures and Rejections

Despite numerous attempts to file responses and rebuttals through PACER, my documents were repeatedly rejected without explanation. This automated rejection process denied me a fair opportunity to present my case. The court's reliance on automated systems and procedural barriers has created an environment where justice is not accessible to those who need it most. The automated rejection of my filings, without any human review or explanation, is a prime example of this systemic failure. The court cannot offer relief and then make it impossible to redeem that relief through procedural hurdles and automated denials.